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Submitter Information

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General Comment

I am a public librarian. I interact with people of a wide variety of demographics: ages, genders, ethnicities, income brackets, and professions. We are already seeing the dangers of generative AI in stifling creativity and individual skills, as well as media literacy and research accuracy. AI has incredible potential with very specific datasets, but it also has distinct environmental, societal, and economic ramifications, especially when used in generative situations.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American small businesses and stifle expertise and creativity if allowed to have special privileges in copyright law.

AI systems can only be produced by first training on work made by people. The work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without our consent or any compensation. Big Tech companies are now asking for exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use". Librarians are big on fair use. This is not fair use.

Our library's website was repeatedly finely-crawled by bots shortly after generative AI began appearing, forcing us to block access to large swaths of IP addresses to stay online. We know it's no longer just happening to material published online; now, we have to be cautious of anything that might pass through an online server. Merely using a service—often require for daily life—should not require Americans to give up their property.

Tech companies seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation. This is absurd. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we send through a server will be stolen by Big Tech giants, where's the incentive to create and share our creations? What will be the incentive to learn? Sharing expertise promotes more innovation. If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things, and how can we possibly compete with the skills of other countries?

Want to protect American innovation? Protect American creators. Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

- Ensure that creators and everyday Americans give effective consent, so that we can decide when and where our work is used by AI systems.
- Encourage a robust licensing marketplace, so that the incentive to create for small businesses is preserved. Creative work and skill has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.
- Require transparency from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what

content is AI generated.

I am not anti-technology or anti-AI. AI has already done incredible things in the healthcare profession when applied to specific datasets, and I deeply appreciate tools that expedite processes that would otherwise take hours. But without the incentive of creative ownership, generative AI datasets will collapse under lack of innovation. Do not sacrifice the hard work and ingenuity of Americans and give it away to Big Tech by rewriting copyright law.

Please protect American innovation, skill, and creativity.